

The Official Languages (Use For Official Purposes Of The Union) Rules, 1976

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The Official Languages (Use For Official Purposes Of The Union) Rules, 1976

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The Official Languages (Use For Official Purposes Of The Union) Rules, 1976

Rule THE-OFFICIAL-LANGUAGES-USE-FOR-OFFICIAL-PURPOSES-OF-THE-UNION-RULES-1976 of 1976

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The Official Languages (Use For Official Purposes Of The Union) Rules, 1976

Published vide G.S.R. 1052, dated 17.7.1976, published in the Gazette of India, Extraordinary, Part II, Section 3(i).

18.

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In exercise of the powers conferred by section 8 read with sub-section (4) of section 3 of the Official Languages Act, 1963 (

19 of 1963

), the Central Government hereby makes the following rules, namely:--

Substituted by G.S.R. 790, dated 24.10.1987.

1.

Short title, extent and commencement .-(1) These rules may be called the Official Languages (Use for Official Purposes of the Union) Rules, 1976.

(2)

They shall extend to the whole of India except the State of Tamil Nadu.

(3)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-In these rules, unless the context otherwise requires:--

(a)

"Act" means the Official Languages Act, 1963 (19 of 1963

);

(b)

"Central Government Office" includes:--

(i)

any Ministry, Department or office of the Central Government;

(ii)

any office of a Commission, Committee or Tribunal appointed by the Central Government; and

(iii)

any office of a corporation or company owned or controlled by the Central Government;

(c)

"employee" means any person employed in a Central Government office;

(d)

"notified office" means an office notified under sub-rule (4) of rule (10);

(e)

"proficiency in Hindi" means proficiency in Hindi as described in rule 9;

(f)

["Region A" means the States of Bihar, Haryana, Himachal Pradesh, Madhya Pradesh, Rajasthan and Uttar Pradesh and the Union Territories of Andaman and Nicobar Islands and Delhi;

(g)

"Region B" means the State of Gujarat, Maharashtra and Punjab and the Union territory of Chandigarh;

(h)

"Region C" means the State and the Union territories other than those referred to in clauses (f) and (g);]

(i)

"Working knowledge of Hindi" means working knowledge of Hindi as described in rule 10.

3.

Communications to States, etc., other than to Central Government offices .-(1) Communications from a Central Government office to a State or a Union territory in Region `A' or to any office (not being a Central Government office) or person in such State or Union territory shall, save in exceptional cases, be in Hindi, and if any communication is issued to any of them in English it shall be accompanied by a Hindi translation thereof.

(2)

Communications from a Central Government office:--

(a)

to a State or Union territory in Region `B' or to any office (not being a Central Government office) in such State or Union territory shall ordinarily be in Hindi and if any communication is issued to any of them in English, it shall be accompanied by a Hindi translation thereof:

Provided that if any such State or Union territory desires the communications of any particular class or category or those intended for any of its offices, to be sent for a period specified by the Government of the State or Union territory concerned, in English, or in Hindi with a translation in the other language, such communication shall be sent in that manner;

(b)
to any person in a State or Union territory of Region `B' may be either in Hindi or English.

(3)
Communications from a Central Government office to a State or Union territory in Region `C' or to any office (not being a Central Government office) or person in such State shall be in English.

(4)
Notwithstanding anything contained in sub-rules (1) and (2), communications from a Central Government office in Region "C", to a State or Union territory of Region "A" or Region "B" or to any office (not being a Central Government office) or person in such State may be either in Hindi or in English:

Provided that communications in Hindi shall be in such proportion as the Central Government may, having regard to the number of persons having working knowledge of Hindi in such offices, the facilities for sending communications in Hindi and matters incidental thereto determine from time to time.

4.
Communications between Central Government Offices .-Communications--

(a)
between one Ministry or Department of the Central Government and another may be in Hindi or in English;

(b)
between one Ministry or Department of the Central Government and attached or subordinate offices situated in Region "A" shall be in Hindi and in such proportion as the Central Government may, having regard to the number of persons having a working knowledge of Hindi in such offices, the facilities for sending communications in Hindi and matters incidental thereto, determine from time to time;

(c)
between Central Government offices situated in Region "A" other than those specified in clause (a) or clause (b), shall be in Hindi;

(d)
between Central Government offices situated in Region "A" and offices in Region "B" or Region "C" may be in Hindi or in English:

Provided that these communications shall be in Hindi in such proportion as the Central Government may, having regard to the number of persons having working knowledge of Hindi in such offices, the facilities for sending communications in Hindi and matters incidental thereto, determine from time to time;

(e)
between Central Government offices situated in Region "B" or Region "C" may be in Hindi or English:
Provided that these communications shall be in Hindi in such proportion as the Central Government may, having regard to the number of persons having working knowledge of Hindi in such offices the facilities for sending communication in Hindi and matters incidental thereto, determine from time to time:

Provided that a translation of such communication in the other language shall:--

(i)
where the communication is addressed to an office in Region "A" or Region "B" be provided, if necessary, at the receiving end;

(ii)
where the communication is addressed to an office in Region "C" be provided alongwith such communication:
Provided further that no such translation in the other language shall be required to be provided if the communication is addressed to a notified office.

5.
Replies to communications received in Hindi .-Notwithstanding anything contained in rules 3 and 4, communications from a Central Government office in reply to communications in Hindi shall be in Hindi.

6.
Use of both Hindi and English .-Both Hindi and English shall be used for all documents referred to in sub-section (3) of section 3 of the Act and it shall be the responsibility of the persons signing such documents to ensure that such documents are made, executed or issued both in Hindi and in English.

7.

Applications, representations, etc .-(1) An employee may submit an application, appeal or representation in Hindi or in English.

(2)

Any Application, appeal or representation referred to in sub-rule (1) when made or signed in Hindi, shall be replied to in Hindi.

(3)

Where an employee desires any order or notice relating to service matters (including disciplinary proceedings) required to be served on him to be in Hindi, or as the case may be, in English it shall be given to him in that language without undue delay.

8.

Noting in Central Government offices .-(1) A employee may record a note or minute on a file in Hindi or in English without being himself required to furnish a translation thereof in the other language.

(2)

No Central Government employee possessing a working knowledge of Hindi may ask for an English translation of any document in Hindi except in the case of documents of legal or technical nature.

(3)

If any question arises as to whether a particular document is of a legal or technical nature, it shall be decided by the Head of the Department or office.

(4)

Notwithstanding anything contained in sub-rule (1), the Central Government may, by order specify the notified Offices where Hindi alone shall be used for noting, drafting and for such other official purposes as may be specified in the order by employees who possess proficiency in Hindi.

9.

Proficiency in Hindi .-An employee shall be deemed to possess proficiency in Hindi if:-

(a)

he has passed the Matriculation or any equivalent or higher examination with Hindi as the medium of examination; or

(b)

he has taken Hindi as an elective subject in the degree examination or any other examination equivalent to or higher than the degree examination; or

(c)

[he declares himself to possess proficiency in Hindi and his controlling officer has verified it in the form annexed to these rule.]

10.

Working knowledge of Hindi .-(1) An employee shall be deemed to have acquired a working knowledge of Hindi:-

(a)

if he has passed:-

(i)

the Matriculation or an equivalent or higher examination with Hindi as one of the subjects; or

(ii)

the Pragya examination conducted under the Hindi Teaching Scheme of the Central Government or when so specified by that Government in respect of any particular category of posts, any lower examination under that Scheme; or

(iii)

any other examination specified on that behalf by the Central Government; or

(b)

[he declares himself to have acquired such knowledge and his controlling officer has verified it in the form annexed to these rules].

(2)

The Staff of a Central Government office shall ordinarily be deemed, to have acquired a working knowledge of Hindi if eighty percent of the Staff working therein have acquired such knowledge.

(3)

The Central Government or any officer specified in this behalf by the Central Government may determine whether the

staff of a Central Government office has acquired a working knowledge of Hindi.

(4)

The names of the Central Government offices, the staff whereof have acquired a working knowledge of Hindi, shall be notified in the Official Gazette:

Provided that the Central Government may if it is of opinion that the percentage of the staff working in a notified office and having working knowledge of Hindi has gone below the percentage specified in sub-rule (2) from any date, it may, by notification in the Official Gazette declare that the said office shall cease to be a notified office from that date.

11.

Manuals, codes, other procedural literature, articles of stationery, etc .-(1) All manuals, codes and other procedural literature relating to Central Government offices shall be printed or cyclostyled, as the case may be, and published both in Hindi and English in diglot form.

(2)

The forms and headings of registers used in any Central Government office shall be in Hindi and in English.

(3)

All name-plates, sign boards, letter-heads and inscriptions on envelopes and other items of stationery written, printed or inscribed for use in any Central Government office shall be in Hindi and in English:

Provided that the Central Government may, that is considered necessary to do so by general or special order exempt any Central Government Office from all or any of the provisions of this rule.

12.

Responsibility for compliance .-(1) It shall be the responsibility of the administrative head of each Central Government office:-

(i)

to ensure that the provisions of the Act, these rules and directions issued under sub-rule (2) are properly complied with; and

(ii)

to devise suitable and effective check points for this purpose.

(2)

The Central Government may from time to time issue such directions to its employees and officers as may be necessary for the due compliance of the provisions of the Act and these rules.

[Form]

(See rules 9 and 10)

Declaration

I, (name) hereby declare that I possess proficiency in Hindi/have acquired a working knowledge of Hindi in view of the following :-

Date :

Place :

.....

Signature

and Name and Designation

Delete whichever is not applicable

Verification By Controlling Officer

It is verified that Sh/Smt possesses proficiency in Hindi/have acquired a working knowledge of Hindi.

Date :

Place :

.....

Signature

and Name and Designation

Delete whichever is not applicable

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